

Ankur Kohli vs Vinita Kohli on 5 November, 2020

Author: Hima Kohli

Bench: Hima Kohli, Subramonium Prasad

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IN THE HIGH COURT OF DELHI AT NEW DELHI

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MAT.APP.(F.C.) 134/2020

ANKUR KOHLI

..... Appellant

Through: Mr.Arvind K.Gupta with Mr.Gautam
Choubey, Mr.Prashant Bhardwaj, Mr.Rishi
Bharadwaj and Mr.Shaurya Dogra, Advocates.

versus

VINITA KOHLI

..... Respondent

Through: None.

CORAM:

HON'BLE MS. JUSTICE HIMA KOHLI

HON'BLE MR. JUSTICE SUBRAMONIUM PRASAD

ORDER

% 05.11.2020 HEARD THROUGH VIDEO CONFERENCING.

CM No. 27952/2020 (exemption) Allowed, subject to all just exceptions. MAT.APP.(F.C.) 134/2020 and CM No. 27953/2020 (condonation of delay)

1. The appellant/husband is aggrieved by the judgment dated 07.11.2019, passed by the learned Family Court dismissing a divorce petition filed by him against the respondent/wife under Section 13(1)(1a & 1b) of the Hindu Marriage Act.

2. The records reveal that the marriage of the parties was solemnized on 12.11.2009. They were blessed with a baby daughter on 09.01.2011. The parties had separated on 19.01.2012. The baby daughter is in the care and custody of the respondent who is staying at her paternal house.

3. Mr.Arvind K.Gupta, learned counsel for the appellant states at the outset that his client is ready and willing to negotiate a settlement with the respondent and even reconcile the disputes for the parties to reunite. He states that if given a chance, the parties may be able to resolve their disputes through mediation.

4. Limited to the aforesaid aspect, issue notice to the respondent/wife directly as also through the counsel who was appearing for her before the learned Family Court, returnable on 21.01.2021 by speed post and electronic mode. The notice shall indicate that the respondent shall remain virtually

present on the next date of hearing. So shall the appellant.

5. List on 21.01.2021.

HIMA KOHLI, J SUBRAMONIUM PRASAD, J NOVEMBER 5, 2020 tr/rkb